*EXHIBIT A*

FULL TEXT OF BOND MEASURE

SCHOOL FACILITIES IMPROVEMENT DISTRICT NO. 1 OF THE
YOSEMITE UNIFIED SCHOOL DISTRICT

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With funds that cannot be taken by the State and spent elsewhere, shall Yosemite Unified School District's measure to repair leaky roofs, plumbing, heating, ventilation, and air-conditioning; renovate classrooms; and, update fire alarms and emergency communication systems at Coarsegold Elementary and Rivergold Elementary be adopted, authorizing $18 million in bonds with legal rates, levies below $60 per $100,000 of assessed valuation ($1.2 million annually) while outstanding, audits, taxpayer oversight, no funds for administrator salaries, and public disclosure of all spending?

## INTRODUCTION

The Board of Trustees of the District formed School Facilities Improvement District No. 1 of the Yosemite Unified School District for the purpose of issuing bonds to raise funding for elementary school improvement projects.

The District operates two elementary school campuses, the Coarsegold Elementary School and the Rivergold Elementary School, which together serve the area represented by SFID No. 1. The District has an ongoing need for elementary facilities and improvements serving SFID No. 1, including basic repairs of the old school facilities and infrastructure including fixing and replacing leaky roofs and plumbing systems; upgrades to emergency communication and fire alarms; repairs of inefficient and aging HVAC systems; and enhancement of campus safety and security. Addressing these needed facilities issues requires that the District ask the voters of SFID No. 1 to approve a General Obligation Bond.

The State of California requires a local match, funded primarily through local, general obligation bonds, for school districts wishing to pursue matching state funds for the upgrade or replacement of school buildings and facilities. The millions of dollars potentially available through the State match allows local taxpayers to benefit from the tax dollars they already pay to Sacramento.

It is imperative that our students are housed in educational environments consistent with the District's priority to provide school facilities that are safe, attractive, and appropriate for learning. The District needs to act locally to provide a school environment to ensure our students have the educational opportunities they deserve, and a school environment the community can take pride in.

## SCHOOL FACILITIES PROJECTS TO BE FUNDED FROM BOND PROCEEDS

**Scope of Projects**. As required by the California Constitution, the proceeds from the sale of the bonds will be used only for the purposes authorized under Article XIIIA of the California

Constitution, including construction, reconstruction, rehabilitation, or replacement of school facilities, furnishing and equipping of school facilities, or the acquisition or lease of real property for school facilities, as specifically set forth in this ballot measure, and costs incident thereto, and not for any other purpose, including salaries and other routine school operating expenses. This measure authorizes bond projects to be undertaken at the District's elementary school sites, including Coarsegold Elementary School and Rivergold Elementary School, as well as any future District elementary school constructed to benefit the area within the SFID.

The below project list describes the specific projects the District proposes to finance with proceeds of the bonds. The scope of specific projects, the order of construction, and their completion is contingent on facilities planning, final project costs, and the availability of needed funds. Further, projects on the project list are of the type that issuing the authorized general obligation bonds will not cause the State to reduce any financial contribution that would otherwise be available to the District had these bonds not been authorized, issued, and or expended for their stated purpose.

**School Facility Project List**. The projects authorized by this measure include but are not limited to the following:

- Modernize and renovate classrooms and science labs
- Acquire, install and/or upgrade campus safety, security and emergency communication systems, including intercoms, cameras, lighting, fencing, wayfinding, controlled access gates, electronic door locks, bell systems, fire alarms and life safety systems
- Repair or replace deteriorating asphalt, concrete, sidewalks, parking lots, driveways and walkways
- Renovate, modernize, retrofit and equip transitional kindergarten and kindergarten spaces
- Replace, repair, modernize deteriorating roofs, leaking pipes, outdated plumbing, sewer and gas lines, waterlines, water heaters, storm drains and valves, heating, cooling, boilers, air-filtration systems, and ventilation systems (HVAC)
- Renovate, replace and modernize classrooms and school facilities including flooring, windows, window coverings, doors, lighting, interior and exterior finishes, and paint
- Renovate, expand and modernize science labs and other administrative and support facilities
- Renovate, modernize and repair restrooms
- Acquire, install, repair, and replace water filtration systems and drinking fountains
- Repair, modernize, remove or replace aging portables or replace with permanent modern facilities
- Renovate, modernize, retrofit and equip classrooms, learning spaces, and student support facilities for special education, counseling, and student wellness services

- Improve, upgrade and increase electrical service, capacity, back-up power and battery storage systems, and emergency generators to support HVAC systems and district-wide technology upgrades
- Upgrade, install, expand district-wide technology infrastructure including cabling, internet, phone systems, wi-fi, network systems, classroom technology and related equipment to support a modern learning environment
- Renovate, repair, replace, and improve playgrounds, sports fields, tracks and other physical education and athletic facilities
- Develop, update, install and improve outdoor areas including playgrounds, outdoor gathering spaces, hardscaping, landscaping, irrigation improvements, and shade structures
- Modernize, retrofit, equip cafeterias, food service facilities, and student common areas
- Renovate, repair, construct, or update multipurpose rooms, libraries, health-services/nurse offices, media centers, and classrooms for band, music and arts programs
- Upgrade/improve energy efficiency and install or replace energy conservation or generation systems (lighting, electrical, solar, geothermal) to reduce utility costs and accommodate District's increased usage of and demand for 21st century technology
- Make health and safety improvements, such as installing necessary seismic reinforcements, repairing termite damage and repairing and/or replacing aging building materials including removal of hazardous materials identified either prior to or during construction
- Federal and State-mandated Americans with Disabilities Act (ADA) accessibility upgrades district-wide including site access, walkways, parking, staff and student restrooms, relocation of some existing electrical devices, drinking fountains, playground equipment and classrooms

The project list includes both projects that can be completed using the bond proceeds, along with State matching funds and other building funds the District is projected to receive and projects that are planned and needed but whose construction is contingent on the amount of bond funds available, plus the amount of State matching and other building funds the District may receive in the future, which is a function of the State building program rules, passage of State bonds, and the growth rate of the District. The completion of specific projects is also contingent on final project costs.

The Board of Trustees hereby certifies that it has evaluated the safety, class-size reduction, and information technology needs of the District in developing this list of school facilities projects.

Incidental Expenses. Each of the bond projects described in this project list include the costs of furnishing and equipping such facilities, and all costs which are incidental but directly related to the types of projects described above. Examples of incidental costs include, but are not limited to: costs of design, engineering, architect and other professional services, facilities assessments, inspections, site preparation, utilities, landscaping, bond project construction management, administration and other planning and permitting, legal, accounting and similar costs;

independent annual financial and performance audits; a customary construction contingency; demolition and disposal of existing structures; the costs of interim housing and storage during construction including relocation and construction costs incurred relating to interim facilities; the preparation or restoration of construction, renovation or remodeling; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; costs of relocating facilities and equipment as needed in connection with the projects; interim classrooms and facilities for students, administrators, and school functions, including modular facilities; federal and state-mandated safety upgrades; addressing unforeseen conditions revealed by construction/modernization and other necessary improvements required to comply with existing building codes, including the Field Act; access requirements of the Americans with Disabilities Act; and costs of the election; bond issuance costs; and project administration during the duration of such projects, as permitted by law.

Furnishing and Equipping. Each project is assumed to include its share of furniture, fixtures, equipment, architectural, engineering, and similar planning costs, program/project management, staff training expenses and a customary contingency for unforeseen design and construction costs. In addition to the listed projects stated above, the list also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the list; installation of signage and fencing; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and construction documentation, and temporary housing of dislocated District activities caused by construction projects. The upgrading of technology infrastructure includes, but is not limited to, computers, projectors, portable interface devices, servers, switches, routers, modules, sound projection systems, printers, digital white boards, document projectors, telephone system, call manager and network security/firewall, wireless technology systems and other miscellaneous equipment and software.

Alternations to Scope; New Construction. The scope and nature of any of the specific projects described above may be altered by the District as required by conditions that may arise during the course of design and construction. In the event that a modernization or renovation project is more economical for or otherwise determined by the Board to be in the best interests of the District to be undertaken as new construction, this bond Measure authorizes said new construction including land acquisition, relocation and construction at a new or alternative site, and/or demolition and reconstruction and/or repurposing on the original site, including an expanded site, and all costs relating thereto. In addition, this Measure authorizes the acquisition of real property, including necessary rights of ways or other real property interests, required to expand District facilities, to provide access to school or other District facilities, or to provide additional school or related facilities. For any project involving rehabilitation or renovation of a building or the major portion of a building, the District shall be authorized to proceed with new construction instead, if the Board of Trustees determines that replacement and new construction is more economically practical than rehabilitation and renovation, considering the building's age, condition, expected remaining life, and other relevant factors.

Interim Financing Included; Joint Use Projects Authorized. Authorized projects include paying and/or prepaying interim or previously obtained financing for the types of projects included on the project list, such as bond anticipation notes, and includes prepayment of lease payments to

acquire title to facilities and/or equipment previously financed. Projects may also be undertaken on a joint use basis with other public entities, and such projects may include participation in the State Facility Program's Joint-Use Program to gain matching funds for teacher education, multi-purpose rooms, gymnasiums, libraries, childcare, and other qualifying joint-use facilities. With respect to such joint-use projects, the bond funds authorized by this Measure may be used to pay all of the local share needed to qualify the projects for special State matching funds under the State Facility Program's Joint-Use Program requirements.

Bond Project List Not in Order of Priority; Board Determines Prioritization. Approval of this bond Measure does not guarantee that the proposed projects will be funded beyond the local revenues generated by the Measure. The District's capital needs currently exceed the amount of bonds the voters are being asked to authorize. The order in which particular projects are listed is not intended to suggest priority for funding or completion, and itemization of projects in the list above does not guarantee that all such projects will be undertaken. Project priorities will be determined by the Board of Trustees.

Interpretation. The terms of this bond Measure and the words used in the project list shall be interpreted broadly to effect the purpose of providing broad and clear authority for the officers and employees of the District to provide for the school facilities projects the District proposes to finance with the proceeds of the sale of bonds authorized by this proposition within the authority provided by law, including Article XIIIA, Section 1(b)(3) of the California Constitution, Education Code Section 15000 *et seq.* and the Strict Accountability in Local School Construction Bonds Act of 2000. Words used in the project list such as repair, improve, upgrade, expand, modernize, renovate, and reconfigure are used to describe school facilities projects in plain English but are not intended to expand the nature of such projects beyond what is authorized by law. As such, in accordance with legal requirements, the project list does not authorize, and shall not be interpreted to authorize, expending proceeds of the sale of bonds authorized by this proposition for current maintenance, operation or repairs.

Severability. The Board of Trustees hereby declares, and the voters by approving this Measure concur, that every section and part of this bond proposition has independent value, and the Board of Trustees and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this Measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law, and to this end the provisions of this bond Measure are severable.

## ACCOUNTABILITY MEASURES

If the bonds are approved, the Board of Trustees will implement the following accountability measures in accordance with State law:

(a) Use the bond proceeds only for the purposes authorized under Article XIIIA of the California Constitution, including construction, reconstruction, rehabilitation, or replacement of school facilities, furnishing and equipping of school facilities, or the acquisition or lease of real property for school facilities and related uses, as

specifically set forth in this Measure, and costs incident thereto, and not for any other purpose, including salaries and other routine school operating expenses;

(b) Conduct an annual, independent performance audit to ensure that the bond proceeds have been expended only on the projects and uses listed in this Measure;

(c) Conduct an annual, independent financial audit of the proceeds from the sale of the bonds until all of those proceeds have been expended for school facilities projects and uses listed in this Measure; and

(d) Establish and appoint members to an independent citizens' oversight committee to ensure the bonds are used only for the projects and uses listed in this Measure.

The District shall create an account into which proceeds of the bonds shall be deposited and comply with the reporting requirements of Government Code section 53410.

## STATE MATCHING FUNDS

California Education Code section 15122.5 requires the following statement to be included in this sample ballot:

> "Approval of this bond measure does not guarantee that the proposed projects in the Yosemite Unified School District that are the subject of bonds under this measure will be funded beyond the local revenues generated by this bond measure. The District's proposal for certain of the projects assumes the receipt of matching state funds, which are subject to appropriation by the Legislature or approval of a statewide bond measure."

## ANNUAL TAX AMOUNT, RATE, AND DURATION

The bonds shall bear interest at an annual rate not exceeding the statutory maximum. The maturity of the bonds shall not exceed the maximum term allowed by law at the time of issuance (currently 25 years if issued under Education Code section 15140, or 40 years if issued under Government Code section 53508, so long as the bonds are not capital appreciation bonds ("CABs," which CABs are limited to 25 years)). Accordingly, as further set forth in the tax rate statement, the *ad valorem* tax will be levied at such rates and for so long as may be required to meet the debt service needs of the bonds proposed to be issued, including such bonds that may be issued to refund any approved bonds.